Chhattisgarh State Power Distribution ... vs Central Electricity Regulatory ... on 14 January, 2016

Judgment in Appeal No. 225 of 2014

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
AT NEW DELHI

(APPELLATE JURISDICTION)

APPEAL NO. 225 OF 2014

Dated: 14th January, 2016

Present: Hon'ble Mr. Justice Surendra Kumar, Judicial Member
Hon'ble Mr. T. Munikrishnaiah, Technical Member

IN THE MATTER OF:-

Chhattisgarh State Power Distribution Co.Ltd.
VidyutSevaBhavan, Danganiya,
Raipur-492013, Chhattisgarh
Through its Additional Chief Engineer (RAC) ....Appellant/Petitioner

VERSUS

1. Central Electricity Regulatory Commission,
3rd& 4thFloor, Chanderlok Building,
36, Janpath, New Delhi-110001
Through its Secretary.

2. Gujarat UrjaVikas Nigam Ltd.,
Sardar Patel VidyutBhavan,
Race Course, Vadodara-390007
Through its Executive Director (Finance).

3. Maharashtra State Electricity Distribution Co. Ltd.,
Prakashgad, Bandra (East),
Mumbai-400 051
Through its Chief Engineer (PP).

4. Madhya Pradesh Power Management Co. Ltd.,
Shakti Bhawan, Vidyut Nagar,
Jabalpur-482008 (Madhya Pradesh)
Through its Managing Director.

5. Western Region Electricity Board,
now known as Western Regional Power Committee,
F-3, MIDC Area, Marol,
Andheri (East), Mumbai-400093
Through its Member Secretary ....Respondent(s)

Counsel for the Appellant ... Ms. SuparnaSrivastava

Counsel for the Respondent(s) ... Mr. M.S. Ramalingam for R-1
Mr. Anand K. Ganesan for R-2

1|Page

Judgment in Appeal No. 225 of 20

Mr. RaheelKohli and
Mr. VarunPathak for R-3
Mr. G. Umapathy
Ms. R. Mekhala
Mr. Dilip Singh for R-4

JUDGMENT

PER HON'BLE JUSTICE SURENDRA KUMAR, JUDICIAL MEMBER

1. The instant Appeal under Section 111 of the Electricity Act, 2003, has been preferred by Chhattisgarh State Power Distribution Co. Ltd. (in short, the 'Appellant'), against the impugned Order, dated 4.7.2014, passed by the Central Electricity Regulatory Commission (in short, the 'Central Commission')/Respondent No.1 herein,in Petition No.91/MP/2013:Chhattisgarh State Power Distribution Co. Ltd. vs. Gujarat UrjaVikas Nigam Ltd. &Ors. whereby, the Central Commission has declined to grant to the Appellant interest on Frequency Linked Energy Exchange (FLEE) charges paid to it by Gujarat UrjaVikas Nigam Ltd./Respondent Nos.2 and Maharashtra State Electricity Distribution Co. Ltd./Respondent No.3 based on the computations made by Western Regional Power Committee/Respondent No.5 pursuant to the directions of the CentralCommission and this Appellate Tribunal. Accordingly to the Appellant in doing so, the Central Commission has misconstrued and misinterpreted the proceedings, orders and judgments of this Appellate Tribunal relating to the adjudication and discharge of FLEE liabilities of the constituents in the Western Region and notwithstanding that the principal FLEE liability has at all times been admitted and acknowledged by Respondent Nos.2 & 3 as payable to the Appellant, has refused to grant interest thereon in violation of its own earlier Order and as also in violation of the law of interest. In the process, the Appellant is denied of its legitimate legal dues which it is entitled

2|Page Judgment in Appeal No. 225 of 2014 to receive on account of delayed payment of FLEE liability by Respondent Nos.2 and 3.

2. The only question involved in the instant Appeal is whether the Appellant/Petitioner is legally entitled to file a separate petition/suit for claiming interest on the decretal amount after its execution petition, seeking execution of the said decree, has been finally disposed of by the Executing Court and after the decree has been fully satisfied?

3. The Appellant being the successor of the erstwhile Chhattisgarh State Electricity Board is functioning as a distribution licensee in the State after the unbundling of the Electricity Board.

4. The Respondent No.1 is the Central Electricity Regulatory Commission which is authorized to discharge the various functions provided under the Electricity Act including the functions enjoined

upon it under Section 79 of the Electricity Act, 2003 including determination of the tariff of generating companies owned and controlled by the Central Government, regulation of inter-State transmission of electricity and issuance of licence to persons for functioning as transmission licensee and electricity trader with respect to their inter-State operation. Respondent Nos. 2, 3 and 4 are the Electricity Boards/distribution utilities for the States of Gujarat, Maharashtra and Madhya Pradesh respectively. Respondent No.5 is the Regional Electricity Board for the Western Region which is now Regional Power Committee under Section 2(55) Electricity Act, 2003, empowered to enforce with mutual agreement from time to time on matters concerning smooth operation of the integrated grid and economy and efficiency in the operation of the power system in that region.

3|Page Judgment in Appeal No. 225 of 2014

5. The relevant facts for the purpose of deciding this Appeal are as under:

> (a) That consequent to an agreement reached at Western Regional Electricity Board (WREB) [Presently named as Western Regional Power Committee (WRPC)], the FLEE scheme was introduced in the Western Region on 01.06.1992 and remained in force till 30.06.2002, when FLEE scheme was replaced by the Availability Based Tariff introduced by the Commission. Under the FLEE scheme, the State drawing power in excess of its allocated quota was to pay penal charges (the FLEE charges) to the State whose allocated share was drawn, rate of which was linked to the frequency at the time of over-drawl. In accordance with the FLEE scheme, the Electricity Boards of the concerned States were required to bilaterally settle the FLEE charges on monthly basis as worked out by WERB at the agreed rates.

(b) That when FLEE scheme was in force in Western Region, the erstwhile State of Madhya Pradesh was reorganized with effect from 01.12.2000 and the present States of Madhya Pradesh and Chhattisgarh were created. As a consequence of the reorganization, Madhya Pradesh State Electricity Board (MPSEB) and Chhattisgarh State Electricity board (CSEB) succeeded Madhya Pradesh Electricity Board (MPEB) in the newly created States. At the time of reorganization, MPEB had an outstanding liability of the FLEE charges towards other constituents of the Western Region.

(c) That Ministry of Power issued a notification dated 04.11.2004 apportioning the assets and liabilities of MPEB

4|Page Judgment in Appeal No. 225 of 2014 between MPSEB and CSEB. The notification allocated the entire outstanding liability of MPEB on account of purchase of power to the newly formed MPSEB. The constitutional validity of the said notification dated 04.11.2004 was upheld by the Hon'ble Supreme Court in its judgment dated 13.09.2006 in Writ Petition (Civil) No. 675 of 2004 - Madhya Pradesh State Electricity Board Vs. Union of India and others [2006 (10) SCC 736]. In accordance with the judgment of the Hon'ble Supreme Court, MPSEB became liable to pay the outstanding FLEE charges for the period up to 30.11.2000.

(d) When the above Writ Petition was pending before the Hon'ble Supreme Court, Maharashtra State Electricity Board (MSEB) filed a petition, being Petition No. 43 of 2005, before the Central Commission praying for a direction to MPSEB to pay Rs.114.83 crore on account of the outstanding FLEE charges (after reconciliation of bilateral dues) as on 30.11.2004. In the said petition, MSEB sought directions to Gujarat Electricity Board (GEB) also for payment of outstanding FLEE charges. The Commission in its order dated 02.08.2005 referred the matter to one-Member Bench for its recommendations on the FLEE entitlements/liabilities of the constituents of Western Region in the light of the calculations furnished by WREB in its letter dated 15.07.2005. The one-Member Bench in its order dated 13.09.2005, recommended that MPSEB is liable to pay the entire outstanding FLEE charges for the period up to 30.06.2002, that is, for the period prior to introduction of ABT in Western Region, in four equal installments starting from October 2005, pending resolution of disputes before the Hon'ble Supreme Court and Delhi High Court. The one-Member Bench

5|Page Judgment in Appeal No. 225 of 2014 further recommended that after settlement of the pending disputes, dues settled by MPSEB would be suitably reapportioned between CSEB and MPSEB. It is pertinent to bring out that the one-Member Bench, while making its recommendations considered CSEB and MPSEB as single entity for settlement of FLEE charges. The one- Member Bench also directed payment of interest at the rate of 1% per mensem for delay in payment of installments. The Commission accepted the recommendations of the one-Member Bench and by order dated 06.12.2005 directed that the payment of installments would commence from December 2005 instead of October 2005, as recommended by the one-Member Bench.

(e) That CSEB filed appeal (Appeal No. 21 of 2006) before the Appellate Tribunal for Electricity (Appellate Tribunal) challenging the order dated 06.12.2005 of the commission. The substantive grievance of CSEB before the Appellate Tribunal was that the Commission incorrectly imposed FLEE liability on CSEB by treating MPSEB and CSEB as one unit whereas the liabilities for the pre-reorganization period (01.06.1992 to 30.11.2000) and post-reorganization period (01.12.2000 to 30.06.2002) could have been conveniently segregated between the two Boards.

(f) When the appeal of CSEB was taken up by the Appellate Tribunal for hearing, the judgment of the Hon'ble Supreme Court upholding the constitutional validity of Ministry of Power notification dated 04.11.2004 was available. In the light of the decision of the Supreme Court, the Appellate Tribunal in its judgment dated 14.11.2006 set aside the Commission's order dated 06.12.2005 and absolved CSEB

6|Page Judgment in Appeal No. 225 of 2014 of the liability for FLEE charges for the pre-reorganization period as the entire liability stood allocated to MPSEB in terms of Ministry of Power notification dated 04.11.2004 whose constitutional validity was upheld by the Hon'ble Supreme Court. As regards, the post-reorganization period, the Appellate Tribunal held that the liability of CSEB and MPSEB was also to be worked out in accordance with Ministry of Power notification dated 04.11.2004. The Appellate Tribunal noted that some payment had already been made and directed that further payments of the outstanding amounts be made in accordance with its judgment. In accordance with the judgment of the Appellate Tribunal, WRPC recalculated the FLEE accounts and communicated the same to the constituents in Western Region vide its letter

dated 08.12.2006. In the said letter, it was indicated that CSEB would be entitled to recover FLEE charges amounting to Rs.3,557,097,798/- for the post-reorganization period.

(g) That aggrieved by the computations made by WRPC, as communicated under letter dated 08.12.2006, MPSEB filed an appeal before the Appellate Tribunal. Appellate Tribunal in its judgment dated 17.05.2007 held that the charges earlier calculated and circulated by WRPC under letter dated 08.12.2006 were not in accordance with the Ministry of Power notification dated 04.11.2004. Consequently, CSEB filed a second appeal against the judgment of the Appellate Tribunal in the Supreme Court which was dismissed at the admission stage by the Hon'ble Supreme Court. WRPC recalculated entitlement/liability of Western Region constituents and conveyed the recalculated amount vide its letter dated 06.07.2007. As per the revisedcalculations, CSEB was found entitled to recover

7|Page Judgment in Appeal No. 225 of 2014 Rs.956,135,001/- on account of the FLEE charges which was recoverable from MPSEB, GEB and MSEB. MPSEB is stated to have since discharged its liability on account of FLEE charges towards the Appellant/Petitioner but MSEB and GEB delayed settlement of their liabilities despite protracted correspondence between them and CSEB and discussions at WRPC meetings. The consistent stand of MSEB and GEB was that they were entitled to recover FLEE charges from MPSEB and till their FLEE dues were settled by MPSEB, they were not in a position to settle the dues of CSEB, though they agreed to settle the dues of CSEB after their own dues were paid by MPSEB.

(h) At this stage it may be noticed that the State Electricity Boards in the Western Region were in the mean-time unbundled. The Appellant/Petitioner had succeeded CSEB, and Respondent No.2 (GUVNL), Respondent No.3 (MSEDCL) and Respondent No.4 (MPPMCL) had succeeded GEB, MSEB and MPSEB respectively.

(i) That in view of the inability of GUVNL and MSEDCL to liquidate their liabilities, the Appellant/Petitioner filed Execution Petition No. 1 of 2012 in Appeal No. 21 of 2006 before the Appellate Tribunal. During pendency of the Execution Petition, GUVNL and MSEDCL settled their liabilities towards the Appellant/Petitioner after their outstanding dues were cleared by MPPMCL. Consequently, the Execution Petition was disposed of by this Appellate Tribunal vide order dated 06.02.2013, which is reproduced as under:-

> "Counsel for the Appellant(s): Ms. SupranaSrivastava Counsel for the Respondent(s): Mr. Anand K. Ganesan
>
> 8|Page Judgment in Appeal No. 225 of 2014 Ms. SwapnaSeshadri for GUVNL Ms. Puja Priyadarshini for R-2 - MSEDCL Mr. G. Umapathy for R-4 ORDER An affidavit has been filed by Madhya Pradesh Power Trading Company.
>
> It is submitted by the learned counsel for the Respondent No.2, on instructions, that the entire amount has been paid. This statement is hereby recorded.

With the above observation, the Application is disposed of."

(j) That this Appellate Tribunal disposed of the Execution Petition No.1 of 2012 vide its order dated 06.02.2013 in the presence of counsel for the Appellant/Petitioner but the payment of interest was never pressed before this Appellate Tribunal at the time of disposed of the Execution Petition. Further, the order dated 06.02.2013 passed by this Appellate Tribunal in the said Execution Petition does not record any such plea as to claim of interest at the relevant time. This Appellate Tribunal had not granted any relief with regard to the interest payment in the Execution Petition. If the Appellant/Petitioner had any grievance, the Appellant/Petitioner should have approached the Appellate Tribunal for consideration of its claim for interest which the Appellant/Petitioner had not chosen to do so.

(k) That after the disposal of the Execution Petition by this Appellate Tribunal vide its order dated 06.02.2013, the Appellant/Petitioner has filed the impugned petition, being Petition No. 91/MP/2013 under Section 79 (1) (c) (k) read with section 29 (5) and Section 142 of the Electricity Act,

9|Page Judgment in Appeal No. 225 of 2014 2003 before the Central Commission and sought direction to Respondent No. 2 and 3 on the delayed payment of charges under the Frequency Linked Energy Exchange (FLEE) scheme by them. The specific prayers made by the petitioner are as under:-

> "(a) Direct Respondent No.1 to pay to the petitioner a sum of Rs.529,332,112/- as on 07.02.2013 together with interest @ 0.04% per day from 08.02.2013 till payment thereof is made to the petitioner.
>
> (b) Direct Respondent No.2 to pay to the petitioner a sum of Rs.114,459,397/- as on 05.02.2013 together with interest @ 0.04% per day from 06.02.2013 till payment thereof is made to the petitioner.
>
> (c) Pass such further order or orders as may be deemed just and proper in the circumstances of the case."

(l) The impugned petition of the Appellant/Petitioner has been dismissed by the Central Commission by its Impugned order dated 04.07.2014 finding the same as not maintainable for the following reasons:-

> (i) That this Appellate Tribunal in its judgment dated 14.11.2006 had set aside the Commission's order impugned therein with further direction to WRPC to calculate the liabilities in accordance with the Ministry of Power notification dated 04.11.2014 for the period 01.06.1992 to 30.11.2000. It is clear from the judgment dated 14.11.2006 of this Tribunal that there was no direction with regard to payment of interest on the FLEE charges.

(ii) That since the Appellant/Petitioner was unable to recover the recalculated amount from Respondents, it 10 | P a g e Judgment in Appeal No. 225 of 2014 filed the Execution Petition No.1 of 2012 before this Tribunal with the following prayer:

> "A. direct Respondent Nos.1 and 2 to pay to the Petitioner the amounts as adjudicated by this Hon'ble Tribunal in its judgment and order dated 14.11.2006 and intimated by Respondent No.3 (WRPC) vide its letter dated 08.12.2006 read with letter dated 06.07.2007 towards discharge of their respective FLEE liabilities in favour of CSEB/the Petitioner.
>
> B. direct Respondent Nos. 1 and 2 to pay to the Petitioner interest on the amount stated in (i) above @ 12% from the date same has become payable i.e. within a period of 8 weeks from the intimation dated 08.12.2006 received from Respondent No. 3 (WRPC), till payment thereof."

(iii) That for the first time in the Execution Petition, the Appellant/Petitioner made a prayer for recovery of the amount worked out by WRPC and interest thereon. The Execution Petition was disposed of by this Appellate Tribunal by its order dated 06.02.2013 after being informed that the Appellant/Petitioner had been paid the amount worked out by WRPC. The Appellate Tribunal did not pass any order for the payment of interest claimed by the Appellant/Petitioner. The said order was made in the presence of the counsel for the Appellant/Petitioner, but the counsel had not pressed for payment of interest since the order passed in the Execution Petition did not record any such plea raised at the hearing.

(iv) That this Appellate Tribunal had not granted any relief with regard to the interest payment in the Execution Petition filed by the Appellant/Petitioner. If 11 | P a g e Judgment in Appeal No. 225 of 2014 the Appellant/Petitioner had any grievance, it should have approached this Tribunal for consideration of its claim for interest which the Appellant/Petitioner has not chosen to do. The relief, which had not been granted by this Tribunal cannot be agitated before the Commissionby filing a separate petition.

(v) That para 20 of the judgment dated 14.11.2006 of this Appellate Tribunalhas clearly recorded as under:-

> "We direct WREB to give effect to the judgment in this Appeal and it is not necessary for parties to move either the first respondent or any other authority."

6. We have heard Ms. SuparnaSrivastava, the learned Counsel for the Appellant/petitioner and Mr. M.S. Ramalingam, the learned counsel for the Respondent No.1 and Mr. Anand K. Ganesan learned counsel for the Respondent No.2 and Mr. VarunPathak learned counsel for the Respondent No.3 and Mr. Dilip Singh learned counsel for the Respondent No.4 and gone through the written submissions filed by the rival parties. We have deeply gone through the evidence and other material available on record including the impugned order passed by the Central Commission.

7. The main contention of the Appellant is that:

> (a) That since the learned Central Commission in its order dated 08.12.2005 in Petition No. 43 of 2005 filed by Respondent No.3/MSEDCL directed implementation of the recommendations made by the one Member Bench towards settlement of Frequency linked energy exchange (FLEE) 12 | P a g e Judgment in Appeal No. 225 of 2014 amounts and also granted interest @1% per month on delayed discharge of Frequency linked energy exchange (FLEE) payments between beneficiaries, the Appellant, even after disposal of its execution petition, is entitled to the interest on the FLEE charges for delayed payment and hence the Appellant has filed a separate petition/suit for recovery of the interest. The Appellant cannot be prevented from filing separate petition as the appellant is entitled to receive interest on the late payment of FLEE charges based on the law of interest.

8. Contrary to the aforesaid contention of the Appellant, the learned counsel for the Respondents have submitted that:

> (a) The Appellant filed an appeal being No. 21 of 2006 before this Appellate Tribunal against the order of the Central Commission dated 06.12.2005 and this Tribunal vide its judgment dated 14.11.2006 and 17.05.2007 had set aside the aforesaid order of the central commission. Hence, the Appellant is not entitled to file separate petition/suit to claim the interest as the execution petition of the Appellant had already been disposed of by this Tribunal, while exercising the power of the executing court, vide order dated 06.02.2013.

9. The further submission of the Respondent are as under:-

> (a) This Appellate Tribunal in executing proceeding of Execution Petition No. 1 of 2012 had granted prayer 1 of the execution petition and as regards prayer second with regard to interest claimed by the Appellant, this Tribunal as an executing court did not pass any order.

13 | P a g e Judgment in Appeal No. 225 of 2014

(b) This Appellate Tribunal, vide its order dated 06.12.2013 passed in executing petition, has recorded that entire amount has been paid and accordingly the execution petition for execution of the judgment/order dated 14.11.2006 was disposed of. The settled law is that relief sought for and not granted is deemed to have been rejected. Since there was no direction of payment of interest in judgments dated 14.11.2006 and 17.05.2007 arising out of Appeal No. 21 of 2006, as no prayer regarding payment of interest was made by the Appellant in Appeal. Hence, the Appellant could file separate petition or suit for claiming the interest over decretal amount after execution petition of the same decree had been finally disposed of on merits and the decree having been fully satisfied. The learned counsel for the Appellant while trying to justify the stand of the Appellant to claim the interest over the decretal amount by filing a separate petition has argued at length over the

principles relating to law of interest which is not permissible under the circumstances of the present matter.

10. The learned counsel for the Respondents drawing our attention to section 11 of Civil Procedure Codehave submitted that:

> (a) The said petition of the Appellant seeking interest over the decretal amount is barred by the principle res-

judicata/constructive res-judicata as defined under Section 11 of the Civil Procedure Code (CPC). The principle of the res-judicata and constructive res-judicata fully apply to the execution proceedings.

(b) Since in the present case, the order dated 06.12.2005 allowing interest @ 1% per month passed by the Central 14 | P a g e Judgment in Appeal No. 225 of 2014 Commission was got set aside by this Tribunal in its judgment dated 14.11.2006 and 17.05.2007 and further the disposal of the execution petition filed by the Appellanton merit by this Tribunal while exercising the power of the executing court as provided under section 120 (3) of Electricity Act, 2003. The Appellant cannot claim any interest over the decretal amount by filing a separate petition/suit subsequently.

(c) Since the order of the central commission dated 06.12.2005 including interest was set aside by this Tribunal, hence there was no question to allowing any interest in the execution petition and this executing court while disposing of the executing petition did not allow any interest over the decretal amount while disposing of the executing petition, now it is not open to the Appellant/Petitioner to file a separate petition/suit before the Central Commission claiming interest over decretal amount which decretal amount had already been paid and the decree had already been satisfied.

(d) The same view on the principle of res-judicata had been laid down in the following cases:-

> "(A) Engineering Officers Association and other Vs. State of Maharashtra (AIR 1990 SC 1607). (B) The Workmen of Cochin Port Trust Vs. The Board of Trustee of the Cochin Port Trust and others (AIR 1978 SC 1283).
>
> (C) SulochanaAmmaVs. Narayana Nair (1994) 2 SCC."

Our Discussion and Conclusion 15 | P a g e Judgment in Appeal No. 225 of 2014

11. After going through the record, we note that the Appellant/Petitioner during the entire process of deliberations before WRPC for the realization of FLEE charges, did not raise the issue with regard to interest, though interest was claimed in the execution petition filed before this Hon'ble Tribunal. The Appellant has annexed a copy of the minutes of the meeting dated 06.09.2011 held by WRPC where all the parties were present. The perusal of which reveals that the settlement of FLEE dues were arrived under the aegis of Respondent No.5 and the entire amount payable to the Appellant/Petitioner was paid and further para-5 of the minutes on discussions of the meeting dated

06.09.2011 clearly depicts that the amount of FLEE dues based on the bilateral settlement arrived at between the parties was paid.

12. The Appellant/Petitioner having exclusively waived the rate of interest and also the prayer for interest before this Appellate Tribunal during the hearing and disposal of the execution petition of the appellant/Petitioner would be deemed to be rejected by this Tribunal. Hence, it is not open to the appellant/Petitioner to file a separate petition/proceedings before the Central Commission for the purpose of claiming interest over the said decretalamount and the said petition has rightly been rejected by the Central Commission by the impugned order.

13. On careful study of the case law cited by the Respondent side, we find that in view of M/s Gojer Bros. (Pvt.) Ltd. Vs. ShriRatanLal Singh reported as (1974) 2 SCC 453", the judgment/order of the Central Commission stood merged with the judgment of this Tribunal. Para 11 of the above said judgment reads as under:-

> 16 | P a g e Judgment in Appeal No. 225 of 2014 "The juristic justification of the doctrine of merger may be sought in the principle that there cannot be, at one and the same time, more than one operative order governing the same subject-matter. Therefore the judgment of an inferior court, if subjected to an examination by the superior court, ceases to have existence in the eye of law and is treated as being superseded by the judgment of the superior court. In other words, the judgment of the inferior court loses its identity by its merger with the judgment of the superior court."

14. We do not find any force in the contentions of the Appellant/Petitioner, in view of the Section 47 ofthe Civil Procedure Code, 1908, which provides as under:-

> "47. Questions to be determined by the Court executing decree.- (1) All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the Court executing the decree and not yet a separate suit."

15. After consideration the contentions of the rival parties, we hold that the learned Central Commission by its impugned order dated 04.07.2014 has rightly found that the impugned petition being No. 91/MP/2013 is not maintainable. After perusing the order dated 06.02.2013 in Execution Petition No. 1 of 2012 of this Tribunal, we do not find legality and perversity in the impugned order of the central commission. We further hold that the Appellant/Petitioner is not legally entitled to file a separate suit/petition for claiming the interest on the decretal amount, after the execution petitioned filed by the Appellant/Petitioner for execution of the said decree has been finally disposed of by the executing court and after the decree has been fully satisfied.All questions arising between the parties to the suit in which decree was passed or their representative and relating to the execution, discharge or satisfaction of the decree shall be 17 | P a g e Judgment in Appeal No. 225 of 2014 determined by the court executing the decree and not by separate suit as mandated by section 47 of the CPC and, in view of the above discussions and provisions of law the impugned petition

filed by the central commission is not legally maintainable and has rightly been rejected by impugned order of the central commission. In view of the above discussions, this appeal is without merits and is liable to be dismissed.

ORDER The present Appeal, being Appeal No. 225 of 2014, is hereby dismissed without any costs and the impugned order, dated 04.07.2014, passed in Petition No. 91/MP/2013, by the Central Commission is hereby upheld.There shall be no order as to costs.

PRONOUNCED IN THE OPEN COURT ON THIS 14th DAY OF JANUARY, 2015 (T. Munikrishnaiah) (Justice Surendra Kumar) TechnicalMember JudicialMember ☐ REPORTABLE/NON-REPORTABLE VG 18 | P a g e